

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☒ Yes ☐ No

!! Attach the preceding J&A in the staff package for this J&A. The preceding J&A will be used as a reference document.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☐ Yes ☒ No

Dollar Value of this Acquisition: [REDACTED]

Contracting Activity: AFLCMC/WLSK

Purchase Request (if available) / Local ID Number: FD2060-24-31731

Program / Project (and PE, if applicable): [REDACTED]

Program Type (PEO, Enterprise, of Operational): PEO

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ [REDACTED] J&A Type: ☒ [Class](#) ☐ Individual

!! Provide estimated cost of all contracts.

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date	Project Lead / Program Mgr / Requiring Activity	Signature
	[REDACTED]	[REDACTED]
Date	Contracting Officer	Signature
28 Mar 2025	[REDACTED]	[REDACTED]
Date	Local Legal Reviewer	Signature
02 Apr 2025	[REDACTED]	[REDACTED]
Date	Competition Advocate	Signature
23 May 2025	[REDACTED]	[REDACTED]

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APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date	PEO / Head of Procuring Activity / Designated Alternate	Signature

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I. Agency and Contracting Activity.

This Class Justification and Approval (J&A) requests authority for Other Than Full and Open Competition (OTF&OC) to support requirements of Air Force Life Cycle Management Center, C-5M Super Galaxy Division, AFLCMC/WLS. The contracting organization for this proposed contracting action is AFLCMC/WLSK.

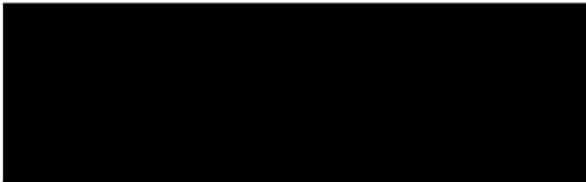
II. Nature and/or description of the action being approved.

Due to the circumstances described herein, the activity requests authority to acquire the services listed in this Class J&A using OTF&OC prescribed by FAR 6.302-1, Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.

This action will result in the award of a follow-on commercial Indefinite Delivery Indefinite Quantity (IDIQ) contract. This will be a Single Award Task Order/Delivery Order Contract based on FAR 16.504(c)(1)(ii)(B) (1) in which this J&A provides supporting rationale. The contract will be Firm Fixed Price (FFP).

The contract will be structured with a 1-year Basic and five (5) additional 1-year options. Based on the projected contract award date, orders can be issued 31 January 2026 through 30 January 2032, if all options are exercised. The contract will include the terms of FAR 52.217-8, "Option to Extend Services." This clause will allow for up to a 6-month extension to the period of performance for individual task orders. The extension will be the same scope of work as in the individual task order(s), therefore considered in-scope work.

The sole source requirement will be purchased from the following vendor:

**III. Description of supplies/services required to meet agency needs.**

This requirement is in support of the C-5M weapon system for hardware and software support for the development of software baselines for future modification programs, Deficiency Report (DR) investigations, and corrections for [REDACTED] software partitions, re-engineering/ proof of concept, formal qualification testing, and Diminishing Manufacturing Sources (DMS), and obsolescence support. This effort will acquire [REDACTED] Software Integration Laboratory (SIL) maintenance and engineering support for both Government-owned SILs and [REDACTED] SILs. SIL equipment is needed to accomplish software integration testing, root cause analysis of software anomalies, and to provide a venue to accomplish studies and analysis of software issues in lieu of using operational aircraft. In addition, this requirement includes delivery of software engineering data.

This effort requires [REDACTED] to work in partnership with the Government to develop fully tested C-5M compatible aircraft Operational Flight Programs (OFPs) and/or related software support applications. This effort requires detailed analyses, to include at a minimum, proposed solutions (with alternatives if applicable), changes to lower-level requirements, design and code changes to software design/ functionality, impacts to processor throughput and memory usage, impacts to test products/ environment and impacts to the system/ software engineering environment.

This effort requires special engineering studies and analysis of service-revealed deficiencies, software

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deficiencies, obsolescence and DMS issues, and enhancements as directed by the Government. The special engineering and analysis reports requires recommendations that fully resolve the software DRs in the most cost-effective means.

This effort will require computer software configuration item and system level testing to ensure all changes are successfully implemented. It requires verification that existing capability has not been degraded or lost. Testing is required to address full component functionality and interoperability capabilities. Test venues (as required or available) are [REDACTED] SIL, engineering support environment, United States Air Force (USAF) SIL, weapons system trainer and/or aircraft. This effort requires software updates to support equipment and/or training devices. It requires maintenance of the SILs at all locations and engineering support and assistance of field identified software problems.

Based on the projected contract award date, orders can be issued 31 January 2026 through 30 January 2032. The funding type to be utilized is 4930 TWCF (AMC) and 3740 AFRC cost share. The total estimated cost of this acquisition is [REDACTED]

The estimated cost for the Basic and options is as follows:

PERIOD	ESTIMATED COST
Basic	[REDACTED]
Option I	
Option II	
Option III	
Option IV	
Option V	
6-Month Ext	[REDACTED]
TOTAL	[REDACTED]

The cost estimate is based on cost comparisons from similar C-5M software sustainment efforts (CSU02, CSU01, Avionics Modernization Program (AMP) BCC03, and AMP BCC04) and previous Sustaining Engineering and Technical Support Services tasks of similar work as a basis.

In accordance with FAR 16.504(c)(1)(ii)(B)(1), only one contractor is capable of providing performance at the level of quality required because the supplies or services are unique or highly specialized, and therefore a single award IDIQ contract was determined to be the most effective and efficient vehicle to procure the supplies and services necessary given the Government cannot predetermine the price quantities of supplies or services within a definite period.

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

The agency's minimum needs can only be satisfied by the unique capabilities and specialized test equipment available from [REDACTED] Lockheed Martin Aeronautics (LMA) Company is the Original Equipment Manufacturer for the C-5M Weapon System, to include the AMP and Reliability Enhancement and Re-engine Program (RERP) modifications to the fleet. As a part of the AMP and RERP modifications, LMA subcontracted with various vendors who hold proprietary data rights to certain aircraft hardware/software, including [REDACTED]. The effort continues a direct strategic partnership with [REDACTED] to reduce reliance on the OEM for the C-5M. [REDACTED] is the sole designer, developer, and Original Equipment Manufacturer (OEM) of multiple pieces of hardware/software on the C-5M aircraft including items from the AMP and RERP configurations. [REDACTED] has proprietary software, drawings, design and manufacturing technical data, development environments (e.g. compilers, linkers, code generation toolsets, etc.), operating systems, and unique test equipment that is required to develop and integrate software solutions for this effort. Due to these facts, this effort is considered highly specialized.

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This effort is a follow-on to contract [REDACTED] period of performance 31 January 2019 to 30 January 2025, awarded sole source to [REDACTED] Task order [REDACTED] was issued 30 January 2025 with performance through 29 January 2026.

C-5 AMP was originally started and developed in 1998 as a Total Integrated System Performance Responsibility (TISPR) competitive contract based on the philosophy of utilizing commercial software technology. Existing commercial avionics software systems were to be used to upgrade the C-5. In 2003, the C-5 AMP was designated as a candidate for meeting core capability requirements and was redirected away from a TISPR environment towards a more organic logistics support arrangement. Since the original contracts were not developed for the Government to retain ownership or unlimited usage of the technical data, the Government does not possess the rights to any data that would allow for competitive sourcing of these services. Level III product drawings, formal acceptance test plans and procedures, software, software design documentation, development environments, software toolsets, and full system/subsystems specifications were not procured. The technical data required under the scope of this effort is proprietary to [REDACTED] for the production and sustainment of the C-5M aircraft.

Modifications under AMP and RERP introduced modern digital avionics along with a significant amount of software in the form of OFPs to the C-5M aircraft. The data rights associated with the technical data packages and the software were claimed to be Limited/Restricted Rights by the prime contractor, LMA, and their subcontractors. The cost (\$1B) to procure all necessary data was provided by LMA in letter DO-LTM-2003-000532-0 dated 04 December 2003. This data rights posture for C-5M continued until 20 June 2013 when the Government successfully instituted a Specially Negotiated License Agreement (SNLA) with LMA, the C-5M integrating OEM, for certain technical data and software. License number SLA-13-C5-001 gave the Government various license rights to certain LMA developed software to include the right to perform organic updates to certain components of the AMP/RERP systems and software using Government personnel. The information obtained through the SNLA cannot be released to contractors or entities outside the Government. While the SNLA has provided a path to eliminate some reliance on the OEMs and bring some software sustainment activities to the Government, modifications required for future software updates to [REDACTED] software partitions which are [REDACTED] Restricted Rights Items must be integrated with the LMA Restricted Rights software as identified in SLA-13-C5-001. A collaborative agreement between [REDACTED] and the Government will provide a mechanism to address [REDACTED] components in partnership and/or organically as multiple software partitions within the Core Processing System remains as Limited/Restricted Rights data with [REDACTED] In addition, the organic C-5M SIL at Robins Air Force Base can be further utilized to investigate [REDACTED] specific hardware and software related deficiency reports. Existing data required for integration is not suitable for a competitive procurement because 100% of the required technical data is proprietary to [REDACTED] Recent Government inquiries to purchase data required to facilitate competitive acquisition processes have proven unsuccessful. [REDACTED] advised the Government in January 2025 that the data rights requested for the specific products are not available for sale.

Award to any other source would result in substantial duplication of development cost to the government that is not expected to be recovered through competition and would cause unacceptable delays in fulfilling the requirement.

In order for a new contractor to accomplish these services, a full redesign of multiple system elements would be required due to the preponderance of data present within the AMP avionics architecture being processed and/or manipulated through the Versatile Integrated Avionics/Avionics Interface Unit (VIA/AIU), which is responsible for core processing on the C-5M platform. This redesign effort is estimated at approximately [REDACTED] in FY24 dollars. This cost is estimated using the initial C-5 AMP Engineering and Manufacturing Development cost as a basis for comparison and using the Consumer Price Index for current year adjustments. Major activities associated with the AMP development effort include redesign for the VIA/AIU, integration design costs, development testing, integration testing, environmental testing

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for line replaceable units (LRUs), flight testing, operational testing, technical data development, logistics, LRU replacement, support equipment, and maintenance manual development (including technical orders). Additionally, SIL development would absolutely be necessary to support a redesign effort. By reviewing data from ongoing SIL efforts, a turn-key SIL development and delivery is estimated to cost approximately [REDACTED]. In addition to the costs associated with the redesign, a schedule slip of six to eight years would be expected, not including production delays. The schedule slip includes time for LRU design and associated OFP development (five years), certification activities associated with the new design, SIL design and delivery (three to five years), and trainer upgrade efforts (two years). There is no reasonable expectation that the money invested in a second source reverse engineering development effort could be recovered through a full and open competition for this requirement or that a new developer would be capable of meeting the requirements timelines. The projected life of the C-5M program is through 2040. The Core Mission Computer (VIA/AIU) was originally projected to be replaced in 2025 but with schedule slips may be pushed out until 2026. Although the projected life is anticipated through 2040, the Core Mission Computer (VIA/AIU) replacement creates an environment where redesign costs would not be recouped to yield any savings from a competitive environment, therefore pursuing a redesign is not practical. There is no reasonable expectation that money invested in a second source reverse engineering development effort could be recovered through a full and open competition.

Accordingly, [REDACTED] is the only firm capable of providing the supplies and services described in Section III above without the USAF experiencing substantial duplication of costs that could not be expected to be recovered through competition and unacceptable delays in fulfilling the requirement.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

A Sources Sought (SS) / Request for Information (RFI) under Notice ID number "FA8525-24-Software_Engineering_Support_Request_for_Information" was published on SAM.gov on 20 February 2024 announcing the Government's intent to award a contract to upgrade and modify the C-5M aircraft with multiple updates to its software baseline as well as other services. The C-5 program office gave a 15-day response window (response date by 12 March 2024) to ensure interested vendors would have sufficient time to prepare a response. No responses to the SS/RFI were received.

This requirement will be synopsized on the SAM.gov web page as required by FAR 5.201. It is anticipated that sources having an interest in subcontracting opportunities may be identified through synopsis. Any source who responds to the Government as a result of this synopsis will be identified to the prime contractor as a potential subcontracting possibility.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer will ensure that the items procured in this effort are negotiated at a fair and reasonable price to the Government in accordance with FAR 15.403-3(c) Commercial items. Additional pricing methodologies to negotiate fair and reasonable pricing may include reviewing publicly offered catalogs, and comparison to historical contractor sales. If the Contracting Officer cannot determine whether an offered price is fair and reasonable, after obtaining additional data from sources other than the offeror, the Contracting Officer will require the submission of other than certified cost or pricing data to support further analysis. In the event that limited cost or pricing information is made available, a detailed cost analysis and price analysis will be performed on the proposed skill mix of labor, labor hours, types and quantities of material and other direct and indirect rates and will be negotiated by the Government based on recommendations from the Defense Contract Management Agency (DCMA) and expert technical personnel supporting the program. The Contracting Officer will seek audit assistance from the Defense Contract Audit Agency, if necessary. The contract price will be negotiated in accordance with procedures in FAR

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Part 12 and 15 ensuring the ultimate cost to the Government is fair and reasonable.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

Market research was conducted 01 March 2024 to 20 November 2024 in accordance with FAR Part 10.001 and 10.002. The Market Research Report was completed on 12 February 2025. The market research techniques used were as follows:

As described in Section V above, a SS/RFI under Notice ID number FA8525-24-Software_Engineering_Support_Request_for_Information was published on SAM.gov 20 February 2024. No responses were received to the SS/RFI.

This requirement is commercial as defined in FAR 2.101. The OEM, [REDACTED] submitted three commercial item justifications on 02 November 2018 along with a Memorandum of Agreement (MOA) dated 09 March 2018 titled "Commerciality Assessment: Prime Contractor, [REDACTED] for proposed C-5 Weapon System avionics parts and associated system software and engineering support services" in support of the Commercial Item Determinations (CIDs) for [REDACTED] commercial items. The Government Integrated Product Team reviewed the [REDACTED] prepared commercial item justifications and MOA and determined that certain [REDACTED] products, associated engineering services, and infrastructure used in support of those products meet the test of commerciality as defined in FAR 2.101. The engineer technical assessment and the DCMA Commercial Item Group report support the CID. In April 2025 DCMA determined there is no need for a new assessment on this or future procurements of the same products and services. The Contracting Officer agreed the commercial determination was appropriate and documented the determination in Contracting Officer CID dated 02 November 2018.

A vendor survey was performed. Internet searches of company websites of seven (7) large businesses, to include [REDACTED] and two (2) small businesses were surveyed to determine the capabilities and services of each. Searches were completed for large aircraft manufactures and for companies that are experienced in providing specialized engineering services for large aircraft, both commercial and military. The vendors were evaluated for their capability and determined not capable based on not having access to the Intellectual Property (IP), adequate knowledge, or data rights to perform this requirement without serious cost or schedule implications. The websites listed below were used for the internet searches.

<http://www.lockheedmartin.com/us/aeronautics/mmro/c5m.html> http://www.lockheedmartin.com/us/aeronautics/materialmanagement/scmterms/scmterms_c5.html <http://www.boeing.com/boeing/defense-space/military/c17/index.page> <http://www.boeing.com/defense-space/military/c17/c17spec.htm> <http://www.boeing.com/defense/c-17-globemaster-iii/> <http://www.airbus.com/support/flight-operations/e-solutions/> <http://www.airbus.com/company/americas/> <http://www.airbus.com/support/maintenance-engineering/> <http://www.airbus.com/support/upgrade-services/airframe-systems-upgrades/> <http://www.northropgrumman.com/Capabilities/MilitaryAviation/Pages/default.aspx> <http://www.l-3com.com/is/waco/index.html> <http://www.l-3com.com/products-services/capabilities?page=2> <http://www2.3com.com/is/isBackground.html> https://www.rockwellcollins.com/Services_and_Support/Database_and_Software_Updates.aspx <https://rvglobalsolutions.com/> <http://www.ssai.org/>

Due to [REDACTED] IP rights (i.e. software, drawings, design and manufacturing technical data, development environments, operating systems and unique test equipment) associated with multiple pieces of hardware and software on the C-5M aircraft (AMP & RERP), market

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research concluded that [REDACTED] as the OEM, is the only vendor capable of meeting this instant acquisition.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

None.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

See Section V above.

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

While the current market research indicates a sole source environment for [REDACTED] the Government will seek to receive the maximum data rights possible via DFARS 252.222-7013 and 252.227-7015 to overcome any barriers to competition. The System Program Office (SPO) will continue to engage with [REDACTED] for its data right reclamation effort for [REDACTED] limited/restricted rights software, design documentation, development environments, tool sets and hardware under this effort. This effort will continue the partnership activity established with [REDACTED] in which software development, test equipment, and software toolsets are brought in-house and an organic capability is established for workloads.

The prior plan to overcome barriers to competition was the same as the current plan. Actions taken to execute this plan; software data, including licensed software, documentation, and technical data, continued to be transferred to the government. A collaborative agreement between [REDACTED] and the government remains in place to address [REDACTED] components within the Core Processing System's multiple software partitions, which [REDACTED] retains as Limited/Restricted Rights data. This collaboration allows for partnered or independent development. These actions will continue in the future until the Government has the ability to establish organic or competitive sustainment capabilities. Based on action taken and planned actions in the future, this J&A does not require higher level approval based on DFARS PGI 206.304(a)(S-70)(ii).

XI. Certification by the Contracting Officer.

As evidenced by my signature, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.